

MINISTRY OF ROAD TRANSPORT AND HIGHWAYS

NOTIFICATION

New Delhi, the 23rd June, 2017

G.S.R.634(E).— In exercise of the powers conferred by section 118 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the Rules of the Road Regulations, 1989, except as respects things done or omitted to be

done before such supersession, the Central Government hereby makes the following regulations for the driving of motor

vehicles, namely:-

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1. Short title, extent and commencement. – (1) These regulations may be called the Motor Vehicles (Driving)

Regulations, 2017.

(2) They shall come into force on the date of its publication in the Official Gazette.

2. Definitions.- (1) In these regulations, unless the context otherwise requires,-

(a) “Act” means the Motor Vehicles Act, 1988 (59 of 1988);

(b) “carriageway” means the part or parts of a road normally used by vehicular traffic, whether separated from one another by a dividing strip or a difference of level or not;

(c) “construction zone” means a section of the roadway where the construction activity is in progress or declared to be undertaken and which may comprise of work space, traffic space or buffer space;

(d) “heavy vehicle” means a heavy goods vehicle or heavy passenger motor vehicle as defined in clauses (16) and (17), respectively, of section 2 of the Act;

(e) “intersection” means any level crossroad, junction or fork, including the open areas formed by such crossroads, junctions or forks;

(f) “longitudinal marking” means the road marking which is provided along the movement of traffic on carriageway;

(g) “major district roads” means the important roads within a district of a State notified as such by the State Government;

- (h) “major road” means the highway, road or street designated as such by any highway authority or local authority within its jurisdiction;
- (i) “national highways” means the highways specified in the Schedule to the National Highways Act, 1956 or any other highway declared as national highway under sub-section (2) of section 2 of the said Act;
- (j) “parking” means the bringing of a vehicle to a stationary position and causing it to wait for any purpose other than that of immediately taking up or setting down persons, goods or luggage, and includes stopping for more than three minutes;
- (k) “rider” or “passenger” means a person travelling on a motor vehicle otherwise than as a driver of that vehicle, whether for hire or reward or otherwise;
- (l) “right of way” means the right of a vehicle or any other road user to proceed in a lawful manner in preference to another vehicle or any other road user approaching under such circumstances of direction, speed and proximity as to give rise to danger or collision unless one grants precedence to one over the other;
- (m) “road” includes bridges, tunnels, lay-bys, ferry facilities, interchanges, roundabouts, traffic islands, road dividers, all traffic lanes, acceleration lanes, deceleration lanes, median strips, overpasses, underpasses, approaches, entrance and exit ramps, toll plazas, and a road under construction, but does not include any private road;
- (n) “road marking” means the lines, patterns, words except road signs which are applied or attached to the carriageway or kerbs or to objects within or adjacent to the carriageway for controlling, warning, guiding and informing the road users;
- (o) “road user” includes a person driving or travelling on the road in a vehicle or otherwise and a pedestrian;
- (p) “silence zone” means an area or locality notified by the competent authority where the use of sound signal is prohibited;
- (q) “state highways” means the arterial roads of a State notified as such by the State Government;
- (r) “stopping” means halting a vehicle for a very short duration out of free will, either to allow passengers to board or alight or for quick loading or unloading of goods;
- (s) “traffic” includes vehicles of every description and other carriages and conveyances,

pedestrians, processions, ridden or herded animals, and all other forms of road traffic using any road or highway for the purpose of travel;

(t) “traffic island” means a physical provision and road markings marked on a carriageway, at or near an intersection to regulate the vehicular traffic;

(u) “traversed marking” means the road marking which is provided across the carriageway.

(1) Any words or expressions used in these regulations, but not defined, shall have the same meaning as assigned to them in the Act.

3. Duty towards other road users and the general public.— No vehicle shall be driven, stopped or parked on a

road or in a public place in such a manner as is likely to endanger the safety of, or cause inconvenience to, other road

users.

4. Use of roads by vehicles. — (1) Every vehicle or combination of vehicles, while moving on a road, shall have a

driver.

(2) A motor vehicle shall be driven on the carriageway:

Provided that on dual carriageways, the vehicle shall be driven on the left carriageway unless otherwise directed by the police officer in uniform for the time being on the duty or by appropriate road signs.

(3) Unless road signs or markings indicate otherwise, the driver shall keep the vehicle as far as possible to the left of

the carriageway, and shall allow all traffic, which is proceeding in the opposite direction, to pass on his right side.

(4) The driver shall keep the vehicle to the left while being overtaken and when approaching a bend or a hill and

when his view ahead is restricted.

(5) A heavy vehicle or speed restricted vehicle shall be driven in the left lane on a carriageway with several lanes in

one direction, except when overtaking an obstruction or a slower moving vehicle:

Provided that the driver shall return to the left lane as soon as he is safely past the obstruction or the slower

moving vehicle, as the case may be.

(6) A vehicle shall not be driven on a road declared “One Way”, except in the direction specified by the signage.

(7) No driver shall pull, push or drive a vehicle against the flow of traffic, except when specifically directed to do so

either through a traffic sign erected by an appropriate authority or by a police officer in uniform for the time being

on duty.

(8) The driver shall keep at a safe distance from a reversing vehicle and not move toward it before the reversing

vehicle has completed its backward motion.

5. Duties of drivers and riders.- (1) Every driver shall at all times drive the vehicle with due care and caution.

(2) The driver shall ensure that at the time of driving a vehicle, he is in full control of his physical and mental

abilities and physically and mentally fully fit to drive a vehicle.

(3) The driver shall at all times maintain a good lookout and concentrate on the road and the traffic and avoid any

activity which distracts, or is likely to distract, his attention.

(4) The driver and the riders shall take special care and precautions to ensure the safety of the most vulnerable road

users such as pedestrians, cyclists, children, the elderly and the differently abled persons.

(5) The driver shall ensure that his vehicle, while moving or when stationary, does not cause any hindrance or undue

inconvenience to other road users or to the occupants of any properties.

(6) The driver shall ensure that his view is not obstructed and his hearing is not impaired by passengers, animals, the

load, equipment in the vehicle or by the condition of the vehicle.

(7) The driver shall ensure that he and the other occupants of the vehicle wears seat belts, if provided in the vehicle.

(8) The driver shall ensure that a child up to twelve years of age is seated in an appropriate child restraint system,

wherever provided.

(9) Wherever provided by or under the law, the rider of a motor cycle, with or without a side car, and the pillionrider

and occupant of the side car shall wear protective head gear (helmet) or such other safety device as specified

under any law for the time being in force.

(10) The driver shall ensure that loud music is not played in the vehicle.

(11) The driver shall not watch digital motion pictures or videos while driving, except

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where required for route navigation:

Provided that the driver shall use a device for route navigation in such a manner as not to distract his attention from driving.

(12) The driver shall strictly comply with the laws for the time being in force relating to prohibition on consumption

of alcohol and drugs and smoking, and also ensure compliance thereto by the other crew, riders and passengers, if

any.

(13) The driver shall take care of himself and the passengers of the vehicle, when getting into or out of a vehicle so

as to ensure his own safety and the safety of the other staff, the passengers and other road users.

(14) The driver shall not, in any public place, drive a vehicle which, to his knowledge, has a defect, or which he

could have discovered by exercising ordinary care, and on account of which defect the driving of the vehicle is likely

to cause undue danger to the safety of the occupants of the vehicles or other road users.

(15) If a technical defect is discovered in a vehicle while it is being driven, the driver shall take the vehicle off the

road in the quickest possible manner:

Provided that powered two wheelers may be pushed to safety in a situation of discovery of a technical defect

during driving.

(16) While riding or driving a motor cycle or a three wheeler, the driver or the rider shall not hold on to or push any

other vehicle.

(17) The driver of a motor cycle or a three wheeler shall at all times hold the handle bar with both hands except

when signalling the manoeuvre as specified in regulation 9.

(18) The driver may take his feet off the pedals or foot rests only if the road conditions so require or safely permit.

6. Lane traffic.- (1) Where any road is marked by lanes for movement of traffic, the driver shall drive within the

lane, and change lanes only after giving a proper signal or road marking or signage.

(2) Where any lane is marked specially for a class of vehicles, a vehicle of that class shall drive in that lane only.

(3) Where a lane has been marked for a specified class of vehicles or for a special purpose, no other vehicle of any

other class shall be driven in that lane.

(4) Where a road is divided by a longitudinal yellow or white solid line, the driver, proceeding in the same direction

and trying to overtake another vehicle ahead, shall not cross the said yellow or white solid line.

(5) While approaching inter-sections, where turning lanes are marked with a single solid line, the driver shall ensure

that the vehicle remains in the lane meant for the direction of manoeuvre.

(6) The driver shall not drive on or over a single or double longitudinal solid line, or on a painted traffic island

except in case of obstructions on the road.

(7) On a road having a single broken line along with a solid line, the driver of the vehicle driving on the left of

broken line may cross the broken line in order to overtake, but shall return to his lane after completing the

manoeuvre, observing the safety precautions specified in regulation 12.

7. Right of way.- (1) Where a "STOP" sign is displayed on a road, the driver facing the sign shall-

(a) stop before crossing the transverse "STOP" line preceding the "STOP" sign;

(b) in case a "STOP" line is not marked, or is marked but is not visible, stop immediately before "STOP" sign;

(c) give way to traffic on the major road; and

(d) enter the major road only when the way ahead is clear.

(2) Where a "Give Way" sign is displayed on the road, supplemented by a single or double broken transverse "Give

Way" road marking, the driver shall slowdown, give way to traffic on the road he is approaching, and proceed

cautiously.

(3) If there is no pedestrian crossing marked before the "Give Way" sign or "STOP" sign, the driver shall give way

to the pedestrians.

(4) the vehicle emerging onto a road from a property bordering thereon shall give way to the motor vehicles and

other traffic already running on that road.

8. Left, right and 'U'turns.- The driver shall plan well in advance of a turn, move to the appropriate lane of the

road and give signal for the intended turn in the following manner, namely:-

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(1) Taking a left turn,-

(a) a driver who wishes to turn left shall clearly and in good time indicate his intention to turn left either by

using direction indicator or giving appropriate hand signal;

(b) before turning left, the driver shall, in reasonable time, move to the left most lane or use a slip lane, where

provided;

(c) while driving on a multi-lane road, where direction arrows pointing to the left are marked on the road, the

driver shall use that lane while taking a left turn;

(d) before moving into the left lane, the driver shall keep in view the traffic to his left and behind him, and

change the lane only after giving a left-turn signal;

(e) before turning left, the driver shall give way to cyclists and other slow-moving traffic;

(f) at uncontrolled pedestrian crossings, the driver shall give way to the pedestrians before turning left;

(g) a vehicle, which is unable to negotiate a left turn due to large turning radius required for the vehicle from

the extreme left lane, may use the next lane with the driver keeping a watch on the traffic on the left of the

vehicle in the rear view mirror and exercising extreme caution while negotiating the turn.

(2) Taking a right turn,-

(a) the driver who wishes to turn right shall clearly and in good time indicate his intention to turn right by

using either the direction indicator or by giving a hand signal;

(b) before turning right, the driver shall in good time move to the right most lane;

(c) while driving on a multi-lane road, where direction arrows pointing to the right are marked on the road,

the driver shall remain in that lane while taking right turn;

(d) before moving into the right lane, the driver shall keep in mind the traffic on his right and behind him, and

change the lane only after giving a right-turn signal;

(e) at uncontrolled pedestrian crossings, the driver shall give way to pedestrians.

(3) Taking a 'U' turn.-

(a) a vehicle shall not make a 'U' turn -

(i) where such 'U' turn is prohibited by a road sign or a traffic signal;

(ii) on a busy road with continuous flow of traffic;

(iii) on a major road, highway or expressway; and

(iv) across a continuous single or a double solid line;

(b) the driver shall not take a 'U' turn if there are any blind spots around the vehicle and shall start taking a

'U' turn only if it is safe to take a 'U' turn, after closely observing the traffic in the opposite direction and observing the traffic on the sides and behind the vehicle in the side view mirrors and rear view mirror;

(c) the driver shall negotiate the right turn only after giving way to the other road users who have the right of

way, including pedestrians and cyclists;

(d) the driver shall ensure that he has a clear view of approaching traffic and shall not cause undue inconvenience to the other road users and also ensure safety of other road users;

(e) a large vehicle may take the 'U' turn from the left lane only where permitted.

9. Precautions to be taken at intersections.- (1) The vehicle shall invariably slow down when approaching a road

intersection, a road junction, a pedestrian crossing or a road corner, and shall not enter any such intersection, junction or

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crossing if it is likely to endanger the safety of other road users moving onto, or already on, such intersection, road

junction, pedestrian crossing or road corner.

(2) At intersections and junctions, vehicles approaching from the right side shall have the right of way:

Provided that this sub-regulation shall not apply,-

(a) when the junction or intersection is being regulated by manual signals by an authorised person, traffic lights or mandatory traffic signs; or

(b) when the vehicle is exiting a minor road and entering a major road.

(3) A motor vehicle shall not enter an intersection if the traffic on the intersection has come to a standstill even if it is

on the main road or has a signal to proceed.

10. Precautions to be taken at roundabouts.- (1) While entering a roundabout, traffic already in the roundabout

shall have the right of way.

(2) A motor vehicle approaching a roundabout shall choose the lane relevant to the direction of its further movement.

(3) The driver shall use indicators when changing lanes within the roundabout.

(4) While exiting the roundabout, the driver shall follow the procedure specified in sub-regulation (2) of regulation

(6) for taking a left turn.

11. Indication of signals.- (1) The driver shall clearly indicate his intention to change course, turn left or right and

before making any manoeuvre, using mechanical or electrical devices fitted in the vehicle or by hand signals.

(2) In case a mechanical or electrical device is not fitted in the vehicle for giving signals or, the said device is

provided but not functioning, the driver shall give manual signals as specified below-

(i) to stop, a driver shall raise his right forearm vertically outside of, and to the right of, the vehicle, palm to the right;

(ii) to turn to the right or to drive to the right-hand side of the road in order to pass another vehicle or for any other reason, the driver shall extend his right arm in a horizontal position outside of, and to the right of, his vehicle with the palm of the hand turned to the front;

(iii) to turn to the left or to drive to the left-hand side of the road, the driver shall extend his right arm and rotate it in an anti-clockwise direction;

(iv) to indicate to the driver of a vehicle behind him that the latter may overtake, the driver shall extend his right arm and hand horizontally outside of, and to the right of, the vehicle and shall swing the arm backward and forward in a semi-circular motion.

12. Traffic control signals.- While approaching a traffic control signal, the vehicle shall slow down and follow the

directions given by the traffic control signals in the following manner, namely:-

(1) Red traffic light, -

(a) a motor vehicle facing the red light of a traffic control signal at an intersection or at a place other than an

intersection, shall stop the vehicle before the stop line preceding the pedestrian crossing;

(b) if the stop line is not marked or, if marked is not visible, the vehicle shall stop before the pedestrian crossing;

(c) if there is no marked pedestrian crossing, the vehicle shall stop before the primary traffic signal;

(d) the vehicle shall move with caution after the green traffic signal turns on;

(e) when, at an intersection or at a place other than an intersection, rapid intermittent flashes of red light are

displayed by a traffic control signal, the vehicle facing the signal shall,-

(i) stop before the stop line preceding the pedestrian crossing;

(ii) stop before the pedestrian crossing if the stop line is not marked or, if marked is not visible;

(iii) stop before the primary traffic signal at the intersection if there is no marked pedestrian crossing;

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(iv) drive past the signal or across the pedestrian crossing after giving the right of way to the pedestrians and the vehicles running at the major road;

(f) notwithstanding anything contained in clauses (a) to (d), a motor vehicle may take a left turn and proceed

further after giving way to the traffic approaching the intersection from its right side and to the

pedestrians and cyclists crossing the intersection on its left side unless a traffic control device or a road sign prohibits a left turn when the red light is on.

(2) Green traffic light, -

(a) when, at an intersection or at a place other than an intersection, a green light is on at a traffic control signal, a motor vehicle facing the green light shall,-

(i) drive the vehicle into the intersection or pedestrian crossing only if the way ahead is clear;

(ii) move only in the direction indicated by the green directional arrow in case a green directional arrow signal is also displayed by a traffic control signal;

(iii) give way to any pedestrian, who is within the intersection or at an adjacent pedestrian crossing,

and to any other vehicle which is within the intersection at the time when the green light turns on;

(b) when, at an intersection, rapid intermittent flashes of green arrow signal are displayed by a traffic control

signal, a motor vehicle facing the flashes of the green arrow signal shall turn only in the direction of the arrow after giving the right of way to pedestrians, cyclists and the vehicles merging in the path which the driver is approaching.

(3) Amber traffic light, -

(a) when, at an intersection or at a place other than an intersection, an amber light is on at a traffic control

signal, the vehicle facing the amber light shall stop before the stop line preceding the pedestrian crossing;

(b) if a stop line is not marked or, if marked is not visible, the vehicle shall stop before the pedestrian crossing:

Provided that if there is no marked pedestrian crossing, the vehicle shall stop before the primary traffic light signal unless it has either crossed the stop line or is so close to the stop line that abrupt stopping may result in a collision with the following vehicle;

(c) a motor vehicle facing rapid intermittent flashes of amber light from a traffic control signal at an intersection or at a place other than an intersection shall slow down and may drive into the intersection or

pedestrian crossing with caution after giving way to the pedestrians and vehicles which are already within

the intersection.

13. Manual traffic control. – (1) Where a police officer in uniform or any other authorised person is regulating the

traffic at an intersection or at a place other than an intersection, the driver shall slowdown the vehicle and follow the

directions of the said officer or person.

(2) When a “STOP” signal is shown by the police officer in uniform or any other authorised person, the driver shall stop the vehicle before the stop line preceding the pedestrian crossing.

(3) In case the stop line is not marked or, if marked is not visible, the driver shall stop the vehicle before the pedestrian crossing.

(4) In case there is no marked pedestrian crossing, the driver shall stop the vehicle before the approaching

road at the junction.

(5) When a vehicle has stopped in compliance to a “STOP” signal given by the police officer in uniform or any other authorized person, it shall not move further until a signal to proceed is given by the said officer or person.

14. Overtaking.- (1) A motor vehicle shall not overtake any other road user unless it is safe and not in violation of

the provisions of the Act or the rules made thereunder or any other law for the time being in force.

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(2) A vehicle shall be overtaken only from the right side:

Provided that a vehicle may be overtaken from the left, if-

(a) the vehicle which is to overtake and the vehicle which is to be overtaken are both driving on a multi-lane road and the vehicle ahead can be safely overtaken in a marked lane to the left of the vehicle being overtaken;

(b) the vehicle to be overtaken is either turning right or making a ‘U’ turn from the centre of the road and is giving a signal to turn and it would be safe to overtake it from the left; or

(c) the vehicle to be overtaken is stationary and it is safe to pass it from the left.

(3) No vehicle shall be overtaken if such overtaking is likely to impede the oncoming traffic.

(4) While overtaking, the vehicle shall be driven at a speed higher than that of the vehicle to be overtaken,

but the speed shall not exceed maximum speed limit specified by or under the Act or the rules made thereunder.

(5) No vehicle shall overtake-

(a) if the traffic situation is not clear;

(b) if prohibited by any mandatory traffic signs;

(c) by crossing the continuous single or double solid longitudinal lane marking dividing the road;

(d) on a bend or corner or at any obstruction of any kind resulting in the road ahead not being clearly visible;

(e) at junctions, intersections and pedestrian crossings;

(f) at a transit location where the road narrows or where lanes on the carriage way are reduced in width;

(g) on a narrow culvert; or

(h) on a road where 'School Zone' or 'Hospital Zone' or 'Construction Zone' is indicated by road signs.

(6) The driver shall use the direction indicators to show his intention to overtake and, after manoeuvring the overtaking, return to the left side of the road as quickly as possible.

(7) No driver shall give a right turn indicator to signal permission to the following vehicle to overtake him.

(8) Outside built up areas, the driver shall signal his intention to overtake the vehicle ahead of him by blowing the horn for a very short duration or by headlight flasher signal and may overtake the vehicle after getting a signal for overtaking from the driver in front or if the way ahead is clear.

(9) If a vehicle is overtaking another vehicle, the driver of the vehicle being overtaken shall not increase its speed or impede the overtaking vehicle's safe return to the left lane.

15. Merging in traffic.- (1) A motor vehicle entering a national highway or a state highway or a major district road

shall give way to traffic on the highway or the major district road, as the case may be.

(2) At an intersection of two roads of same category, the driver of the motor vehicle on the right shall have the right of way.

(3) Wherever applicable, the driver shall use the acceleration for merging lane to build up speed of the vehicle before merging it in the traffic on the highway or on the major district road.

(4) Before and while merging in the traffic, the driver shall keep a close watch on the traffic through rear view mirror and side-view mirrors and signal his intention to merge.

(5) The driver shall not attempt to overtake a vehicle or vehicles ahead of him unless he has stayed long enough in the left-hand lane or the lane in which he had been driving.

16. Speed.- (1) A driver shall drive only at a speed which allows him control of the vehicle at all times, taking into

account the driving conditions, including to the condition of the vehicle and its load, the road, other traffic, visibility and weather.

(2) The vehicle shall, during fog, rainfall, snowfall, storm or desert winds, be driven at a lower speed to enable

the driver to stop the vehicle within the range of forward vision.

(3) A motor vehicle shall not be driven¹

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i. at a speed exceeding or less than the maximum or minimum speed limit specified on the signages;

and

ii. at a speed exceeding the maximum speed limit notified by the competent authority or authorities for that class of vehicles and for the class of roads on which it is for the time being driven.

(4) No driver shall, without good and sufficient reason, drive so slowly as to impede the normal traffic flow.

(5) No driver shall drive at a speed exceeding twenty-five kilometre per hour or such lower speed as may be

specified on the road signage while passing by a construction site or a school or a hospital, wherever indicated

by signage, or on roads without footpaths and soft shoulders where pedestrians use a part of the carriageway to

walk.

17. Keeping safe distance.- (1) A driver driving behind another vehicle shall keep sufficient distance, commensurate with the traffic conditions, from the vehicle ahead, so as to be able to stop (pull up) safely if the vehicle

ahead suddenly slows down or stops.

(2) When being followed by another vehicle, not suddenly brake without a compelling reason.

(3) The driver shall during rainfall, snow or storm or ice on the road due to severe weather conditions and during

other adverse weather conditions, further increase the distance from the vehicle ahead.

18. Restrictions on driving backwards (in reverse direction).- (1) No driver of a motor vehicle shall drive the

vehicle backwards (in the reverse direction) on a road or in a parking or any other public place:

Provided that the driver shall while driving backwards ensure that the backward movement of the

vehicle does not in any manner endanger the safety of, or cause undue inconvenience to, the other road

users and that such reverse movement is for a distance and duration that may be reasonably necessary

to turn around the vehicle.

(2) No motor vehicle shall be driven on to a public road in the reverse direction.

(3) No motor vehicle shall be driven backwards into a road designated as "ONE WAY".

19. Level crossings.- (1) Rail-borne vehicles shall have over-riding priority at all unmanned level crossings.

(2) A driver shall slow down when approaching a railway crossing and shalli.

not park the vehicle within the barriers of a railway crossing;

ii. not overtake within the barriers of a railway crossing; and

iii. keep to the left of the roadway.

(3) At a guarded railway crossing, no motor vehicle shall enter the crossing after the gates or barriers have been

closed or have started to close or when the vehicular traffic is facing red light signal.

(4) At an unguarded railway crossing,-

(a) a motor vehicle shall enter the crossing only after ensuring that no rolling stock is in sight; and,

(b) the driver of a bus, including a school bus, a goods vehicle, a tractor trolley carrying farm labour or goods and a vehicle carrying hazardous, flammable or dangerous materials, shall stop at the approach of the railway crossing and the driver of the vehicle shall cause the attendant or any other person in the vehicle to walk up to the level crossing to ensure that no rolling stock is approaching from either side, and the attendant or such other person shall guide the driver across such level crossing:

Provided that where no such attendant or other person is available in the vehicle, the driver of the vehicle shall safely stop the vehicle on the roadside, alight from the vehicle and walk up to the crossing to see and ensure that no rolling stock is approaching from either side before starting to cross the level crossing.

20. Entering a tunnel.- (1) The driver shall switch on the dipped lights before entering a tunnel.

(2) No driver shall overtake, make a U-Turn or drive backwards inside a tunnel.

(3) No driver shall stop or park the vehicle within a tunnel unless absolutely unavoidable and, in such situation,

switch on the hazard warning lights of the vehicle and also place reflective traffic warning triangles as specified

in clause (c) of sub-rule (4) of rule 138 of the Central Motor Vehicles Rules, 1989, at a distance of twenty meters each from the vehicle in the front of, and behind, the vehicle.

21. Vehicles going uphill to be given precedence.- (1) On mountain roads and steep roads, where the road is not

sufficiently wide to allow the motor vehicles to cross each other freely, the driver travelling downhill shall²⁴

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- i. stop the vehicle on the left side of the road; and
- ii. allow the vehicle proceeding uphill to pass first.

22. Stopping and parking.- (1) A vehicle shall not be stoppedi.

at a place where the road is narrow or the view is obstructed;

- ii. near or on a sharp bend;
- iii. in an acceleration or a deceleration lane;
- iv. on, or five meters before, a pedestrian crossing;
- v. on a level crossing;
- vi. five meters or less before a traffic light signal or “Give Way” sign or “STOP” sign or if a stationary vehicle

is likely to obstruct these signs from the view of other road users;

- vii. at designated bus stands if the vehicle is other than a bus;
- viii. on a yellow box marked on road; and
- ix. where prohibited by a mandatory “No Stopping” sign.

(2) A vehicle shall not be parked-

- (a) at a place where stopping a vehicle is prohibited under sub-regulation (1);
- (b) on a main road or at a stretch of a road where the notified maximum speed limit is fifty kilometres per hour or more;
- (c) on a footpath, cycle track and pedestrian crossing;
- (d) before or after an intersection or a junction up to a distance of fifty meters from the edge of the intersection or junction;
- (e) where it would block access to designated parking spaces;
- (f) near a bus stop, at the entrance to an educational institution or a hospital or if it is likely to block a traffic sign or a fire hydrant;
- (g) in a tunnel;
- (h) in a bus lane;
- (i) in front of the entrance or exit of a property;
- (j) where there is a continuous yellow line installed or painted on the carriageway on the kerb side;

- (k) away from the edge of the footpath;
- (l) opposite another parked vehicle;
- (m) if it is likely obstruct any other vehicle or cause inconvenience to any person;
- (n) alongside another parked vehicle;
- (o) beyond the specified duration at a place where parking is permitted for a specified duration only;
- (p) in a place where parking is permitted for a specified category or categories of vehicles and the vehicle does not belong to the specified category;
- (q) by a driver who is not differently abled in a parking space reserved for vehicles driven by differently abled drivers;
- (r) in a manner other than that specified in the parking bays in a designated parking lot or in such a manner as to occupy excessive space; and
- (s) where parking is prohibited by a "No Parking" sign.

23. Use of horns and silence zones.- (1) Unnecessary use of horn is prohibited.

(2) As far as may be, the horn shall be sounded only when the driver apprehends danger to himself or to any other road user.

(3) The driver shall sound the horn when directed by the mandatory sign.

(4) The driver shall not-

(a) sound the horn continuously or repeatedly or for a duration longer than necessary or in a residential areas or in a silence zone indicated by a mandatory sign;

(b) make use of a cut-out by which exhaust gases are released other than through the silencer;

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(c) fit or use an air horn or a multi-toned horn giving a harsh, shrill, loud or alarming noise except as provided in sub-rule (3) of rule 119 of the Central Motor Vehicles Rules, 1989; and

(d) drive a vehicle which creates undue noise or causes an alarming sound when in motion.

24. Mandatory orders.- (1) A police officer in uniform or an authorised officer of the State Government, may stop

a motor vehicle by giving a signal by means of technical device on the vehicle or a signalling disc or a red light for

verifying the certificate of fitness of the vehicle or for collecting required information in respect of the vehicle or the

driver or other occupants the vehicle, and the vehicle owner or driver shall comply with the instructions given by such

officer.

(2) Every driver shall obey the directions given by mandatory signages, road markings and signalling devices

operated by an authority competent to do so or by a police officer in uniform or by an authorised person for the

time being on duty.

(3) Notwithstanding any other rule for the time being in force or any order, road sign, marking or traffic light

signal, and without prejudice to the duty of the driver to exercise due care and caution, the driver shall obey the

signals or instructions of a police officer on duty in uniform in regard to movement of the vehicle.

(4) The driver shall obey the verbal directions or signals of a police officer for the time being on duty with regard to movement of the vehicle, including the directions to stop or reverse the vehicle or to slow down or to

turn back or to move in the specified direction or to keep in such line of traffic as may be specified by the said

police officer.

25. Passing along formations.- (1) While passing along formations such as funeral and other procession or a body

of troops or police contingent on the march, or pack or saddle of animals or cattle, the driver shall reduce the speed of the

vehicle, and pass by the formation slowly and cautiously, leaving adequate space between the formation and the vehicle.

(2) If the formation as described in sub-regulation (1) is crossing, or is about to cross, the road in front of the

vehicle, the driver shall stop the vehicle and allow the formation to cross the road and not drive through the

formation.

26. Bar on traffic impairment.- Unless validly permitted by the competent authority under the Act or the rules

made thereunder, no driver shall -

i. offer goods or services of any kind on the road; or

ii. display any advertisement on the vehicle.

27. Vehicles designated for emergency duties.- (1) The driver of a vehicle designated by the State Government for

emergency services under sub-rule (4) of rule 108 of the Central Motor Vehicles Rules, 1989 including a vehicle used as

ambulance or for fire-fighting or for salvage purposes or a police vehicle, shall operate the multi-toned horn (siren) and

the multi-coloured light with flasher only when the vehicle is responding to an emergency call or an alarm.

(2) An emergency vehicle, while its multi-toned horn and the flasher is on, shall have the right of way over all

the other vehicles.

(3) In a case of utmost emergency like saving a human life, warding off serious damage to health of a person,

prevent commission of a crime or damage to essential services or fight a fire, the driver of the emergency

vehicle with the multi-toned horn and the multi-coloured flasher operating may, with utmost care, responsibility

and caution.

cross a red traffic light;

ii. exceed the specified speed limit;

iii. drive on a highway hard shoulder; and

iv. drive in either direction on a "NO ENTRY" or a "One Way" street.

(4) The priority within the emergency vehicles as referred in sub-regulation (1) shall be as follows.

first, a fire service vehicle;

vi. second, an ambulance;

vii. third, a police service vehicle; and

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viii. fourth, any other vehicle designated by the State Government as an emergency management

vehicle such as for maintenance of essential public services like water and power supply or

public transport.

(5) When an emergency vehicle, with its multi-toned horn and light flasher on, is overtaking, approaching or

entering the path of any other vehicle, the person driving or riding such other vehicle shall, unless otherwise

directed by a police officer-

(a) yield the right of way to the emergency vehicle, by driving to the left as close as practicable to the kerb or edge of the roadway in the shortest possible time;

(b) stop, if required, and remain stationary in that position until the emergency vehicle has passed.

(6) The driver shall, unless otherwise directed by the crew of the emergency vehicle, maintain a distance of at

least fifty meters from the emergency vehicle on which multi-toned horn or flasher lights or both are operating.

(7) A road maintenance or public utility maintenance vehicle may be parked on the roadway, if necessary, after

switching on the hazard warning lights and placing a warning device with necessary information at least fifty

meters behind the parked vehicle, and take all other precautions to ensure safety of other road users.

28. Vehicle breakdown.- In case a vehicle with more than two wheels has broken down at a place where it can be

recognised in time as a stationary obstacle,-

i. the hazard warning lights of the vehicle shall be switched on immediately;

ii. on highways and major roads with fast speed, reflective traffic warning triangles shall be placed at a distance of fifty meters behind the broken-down vehicle; and

iii. if there is a bend on the road where the vehicle is parked, reflective traffic warning triangles shall be placed before the bend.

29. Action in case of vehicular accident.- (1) The driver shall maintain absolute cool in case of an accident and do

nothing that may harm the other driver or vehicle involved in the accident or any other person.

(2) **Minor accidents, -**

i. the driver or drivers, as the case may be, involved in the accident shall alight from the vehicle and take pictures of the vehicles, the occupants of the vehicles, any pedestrian or any other person or vehicle, whether motor vehicle or otherwise, and the accident scene, if possible;

ii. the drivers shall pull the vehicles out of the road immediately so that the vehicles are clear of on coming traffic;

iii. the driver or drivers shall place reflective traffic warning triangles near or around the vehicles to alert other drivers, and turn on hazard warning lights;

iv. the driver or the riders shall immediately call the police or ambulance or nearest hospital if anyone has been hurt;

v. The driver shall not leave the scene of an accident, even if it was a minor accident, until everything has been resolved to everyone's satisfaction.

(3) Major accidents,-

(a) every person involved in the accident shall check himself and other occupants of the vehicle or vehicles involved in the accident to see if anyone has been injured;

(b) if someone has been hurt, medical assistance and police shall be called immediately;

(c) once the condition of the driver and the passengers or riders has stabilised, the persons involved in the accident shall try to take pictures of the persons and vehicles involved in the accident, including the registration plates of the vehicles and the accident scene;

(d) the driver or drivers involved in the accident shall move the vehicles vehicle off to the side of the road, if possible, at the earliest;

(e) if it is not possible to move the vehicle or vehicles, the driver or drivers involved in the accident shall remain in the area of the incident until the police arrives unless the same is not possible due to injuries sustained in the accident;

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(f) the driver and the other occupants shall cooperate with the police authorities in the investigation of the accident;

(g) if involved in an accident with another vehicle, the drivers shall exchange the following information with that driver: name, address, phone number, insurance company, policy number, driving license number and registration number of the vehicle.

(4) Interacting with the other driver,-

(i) once the initial shock wears off and it is apparent that no one has been seriously hurt, tempers may flare and all persons involved in the accident shall refrain from losing temper or provoking any other person or persons;

(ii) the driver or any other occupant shall get the other driver's name, address, contact information and insurance details, and provide the same to him;

(iii) if an amicable settlement cannot be made, call the police immediately;

(iv) if police has been informed, all persons involved in the accident shall remain at the scene until

the investigators arrive and permit them to leave.

30. Towing a vehicle.- (1) No two-wheeled motor vehicle shall be towed by another vehicle.

(2) The maximum speed while towing a vehicle shall not exceed twenty-five kilometres per hour.

(3) The distance between the towed vehicle and the towing vehicle shall not exceed five meters;

(4) The tow ropes or chains shall be prominently visible to other by road users.

(5) A retro reflective "ON TOW" sign not less than ten centimetres in height and two centimetres in width

with spacing of two centimetres between the letters on white background shall be displayed on the front of

the towing vehicle and at the rear of the vehicle being towed and a driver shall not tow a vehicle at night, in

darkness or in adverse weather conditions unless the hazard warning lights of both vehicles are switched on:

Provided that if the hazard warning lights of the vehicle being towed are not functional, it shall not be towed unless the hazard warning lights of the towing vehicle are switched on.

31. Vehicle lighting.- (1) The driver shall use the specified lighting devices at nightfall, at night and at dawn and at

other times when visibility is poor:

Provided that the driver of a two-wheeled motor vehicle shall drive with dipped head lights switched on during the day time also.

(2) The lighting devices of a vehicle shall at all times be kept in good working condition and no lighting device

shall be obscured by any object or dirt.

(3) No driver shalli.

drive the vehicle with parking lights only, unless so directed by a police officer in uniform or any other authorised person; and

ii. use high beam inappropriately or for long duration or on well-lit roads.

(4) High beam shall be dipped in good time on the approach of an oncoming vehicle or when driving close

behind another vehicle.

(5)The driver shall switch on the fog light headlamps only when visibility is considerably affected due to fog,

dust, storm, rain or snow and only with dipped head lamps.

32. Driving of tractors and goods vehicles.- (1) The driver of a tractor shall not carry, or allow any person to be

carried, on the tractor.

(2) The number of persons in the driver's cabin of a goods carriage shall not be more than the number of persons

specified in the certificate of registration of the vehicle.

(3) No person shall be carried in a goods carriage for hire or reward.

33. Lane splitting (lane within a lane).- In urban areas, on roads having a maximum speed limit of forty kilometres per hour, wherever specifically permitted by road signs, motor cyclists may filter between three and four

wheeled vehicles when the speed difference between the motor cyclists and the other vehicles does not exceed fifteen

kilometres per hour.

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34. Restriction to carriage of dangerous substances.- No driver of a public service vehicle shall carry, or allow

any other person to carry, any explosive or highly inflammable or otherwise dangerous substance except the fuel and

lubricants required for the vehicle.

35. Projection of loads.- (1) The driver shall at all times ensure that loads, including load restraints and loading

equipment, in the vehicle are stowed and restrained in such manner that these cannot slip, fall over, roll around, fall off

the vehicle or produce avoidable noise, even in an emergency braking situation or if the vehicle swerves suddenly.

(2) No driver shall drive in any public place a motor vehicle which is loaded in a manner which is likely to cause danger to any person.

(3) The load or any part thereof, or any other object in the vehicle shall not extend laterally beyond the sides of

the body or to the front or to the rear, or exceed in height or weight the limits specified in the certificate of

registration of the vehicle.

36. Registration plates.- (1) No vehicle shall be driven or parked on a public road without displaying registration

plates as prescribed by the Act and the rules made thereunder.

(2) The registration plates on the front and at the rear of the vehicle shall be clearly visible and legible and no

object whatsoever or dirt shall obstruct clear view of the entire registration place.

(3) No letter, word, figure, picture or symbol other than the registration number shall be displayed or inscribed

or written on the registration plates.

(4) No load or other goods shall be placed on a motor vehicle in such manner as to fully or partly hide the

registration plate.

37. Use of mobile telephones and communication devices.- (1) The driver shall not use any hand held mobile

phone or other communication device.

(2) No trainer or supervisor shall use a mobile phone or other communication device while training or supervising a learner driver.

38. Production of documents.- (1) The driver of a transport vehicle shall always carry with him the following

documents in original, except for a document that might have been seized by an authorised person or authority, namely:-

(a) driving license;

(b) certificate of taxation;

(c) certificate of registration;

(d) certificate of insurance;

(e) fitness certificate; and

(f) pollution under control certificate.

(2) The driver of a vehicle transporting hazardous or dangerous goods shall carry documents specified in rules

132 and 133 of the Central Motor Vehicles Rules, 1989.

(3) The driver of a non-transport vehicle shall always carry with him-

(a) the driving license and pollution under control certificate; and

(b) certificate of registration and certificate of insurance or photocopies thereof.

(4) The driver shall, on demand by police officer in uniform or an officer of the Motor Vehicles Department or

any other officer authorised by the State Government in this behalf, produce the documents for inspection:

Provided that a driver may, if any of the documents has been submitted to or has been seized by any officer or authority under the Act or the rules made thereunder or any other law for the time being in force,

produce, in lieu of the document, a receipt or other acknowledgement issued by such officer or authority in

respect thereof:

Provided further that where the original certificate of registration or the certificate of insurance specified in clause (b) of sub-regulation (3) is not available with the driver, the owner or driver shall produce

such documents before the competent authority, which had directed their production, within fifteen days, if

required by that authority.

39. Pedestrian crossings, footpaths and cycle tracks.- (1) While approaching an uncontrolled pedestrian crossing,

the driver shall slowdown, stop and give way to pedestrians, users of invalid carriages and wheelchairs.

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(2) If traffic has come to a standstill, the driver shall not drive the vehicle on the pedestrian crossing if he is

unlikely to be able to move further and thereby block the pedestrian crossing.

(3) When any road is provided with a footpath or cycle track, no vehicle shall drive on such footpath or track,

except on the directions of a police officer in uniform or where traffic signs permitting such movement have

been displayed.

40. Knowledge and understanding of road signs, markings, traffic control signals, the Act and the Rules.-

Every driver shall be conversant with and possess adequate knowledge and understanding of the following, namely:-

(a) road signs, markings and traffic control signals;

(b) Provisions of the following sections of the Motor Vehicles Act, 1988, namely:-

(i) section 19: Grounds for disqualification or revocation of driving license;

(ii) section 112: Limits of speed;

(iii) section 113: Limit of weight and limitations on use;

(iv) section 121: Signals and signalling devices;

- (v) section 122: Leaving vehicles in dangerous positions;
- (vi) section 125: Obstruction of a driver;
- (vii) section 132: Duty of a driver to stop in certain cases;
- (viii) section 133: Duty of owner of motor vehicle to give information;
- (ix) section 134: Duty of a driver in case of an accident and injury to a person;
- (x) section 185: Driving by a drunken person or under the influence of drugs;
- (xi) section 186: Driving when mentally or physically unfit to drive;
- (xii) section 187: Punishment for offences relating to accident;
- (xiii) section 194: Driving vehicle exceeding permissible weight;
- (xiv) section 200: Composition of certain offences; and
- (xv) section 207: Power to detain vehicles without Certificate of Registration or Permit;
- (c) provisions of the Central Motor Vehicles Rules, 1989-
 - (i) rule 21: Acts which constitute nuisance or danger to the public for disqualifying a person from holding a driving license;
 - (ii) rule 133: Responsibility of the driver;
 - (iii) rule 136: Driver to report to the police station about accident;
- (d) provisions of the notification of the Government of India in the Ministry of Road Transport and Highways

No. 25035/101/2014-RS, dated the 21st January, 2016 published in the Gazette of India, Extraordinary, Part-I,

Section 1 relating to the protection of good samaritans.

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ABHAY DAMLE, Jt. Secy.

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